

all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

7. 9:00 AM CASE NUMBER: L25-05652
CASE NAME: HORMOZ REZAIE VS. LAURA RUETTIGERS
TO COMPEL PLAINTIFF TO RESPOND TO FORM INTERROGATORIES, SET ONE
FILED BY: RUETTIGERS, LAURA JANE
TENTATIVE RULING:

Defendant filed a Motion, on 3/13/26, to compel discovery responses from Plaintiff, along with a request for sanctions, under Sections 2030.290, 2030.210 and 2030.220 of the CCP, and their corresponding statutes with respect to sanctions. Defendant has also filed a Declaration and a Memorandum.

Defendant served the documents on Plaintiff electronically.

Plaintiff filed a Response, on 8/12/26, along with a Declaration ("Plaintiff's Declaration"), on 8/13/26.

Defendant filed a Reply, served electronically.

Background

Defendant claims she served a set of form interrogatories on Plaintiff, ("Set One"), on 9/22/25, but that, to each request, Plaintiff objected and requested more time to respond because of an ailing spouse. The only basis for the objection was the need for a continuance because of this circumstance.

Plaintiff has also, apparently, provided no timeline by which he could provide the discovery responses, despite multiple attempts by the Defendant to meet and confer.

Defendant also alleges that Plaintiff has, simultaneously, been participating in a small claims matter involving the same parties (MSC24-0498A) and in which Plaintiff has submitted hundreds of pages of documents to support his position.

Defendant requests monetary sanctions, arguing that Plaintiff's failure to respond is a misuse of the discovery process.

Defendant's Declaration reflects that Defendant electronically served on Plaintiff's counsel Set One of

form interrogatories on 8/22/25. Plaintiff responded to each interrogatory with the same response, which was that spouse requires 24 hour care from Plaintiff, that Plaintiff is unable to prepare responses, and that he would like more time to respond. Plaintiff does not provide an alternative date by which to respond. "The responses are signed by Plaintiff's counsel and dated 9/22/25. (See Exhibits A and B.)

In his response to the discovery requests, Plaintiff also included a declaration filed on 8/29/25, in the small claims matter, to which he attached a letter from a physician, dated 8/25/25, indicating that Plaintiff's spouse suffered from ALS, was permanently disabled and required 24-hour care.

Exhibit C of this Declaration reflects an email, on 10/2/25, from Defendant's attorney with an offer to extend the deadline to 10/22/25, and that also notes the Plaintiff's failure to offer an alternative deadline in their initial set of discovery responses.

Exhibit D shows another email from Defendant's attorney to Plaintiff's counsel, this time on 10/9/25, following up to the 10/2, email, and noting that Plaintiff failed to respond.

On 11/23/25, Defendant's counsel alludes to a discussion on 11/21, in small claims court, in which Defendant agreed to a further extension for responses to 11/21/25. There were no responses from Plaintiff. Defendant then indicates they will file a motion to compel.

There are a significant number of emails from Defendant's counsel in this vein.

Plaintiff's counsel, Mr. Morgan, finally responds to the emails on 11/24/25, when he refers to the circumstances of his client's ailing spouse, yet provides no indication of when responses can be provided.

Counsel for Defendant cites an hourly rate of 676.65, declares that he has three years of litigation experience, and anticipates a total of 6 hours spent on presenting this Motion.

Plaintiff, in his Response, claims that: Defendant's form interrogatories exceeded the cap for such discovery requests in limited civil cases; Defendant moves for relief under the wrong statutory authority, since he did provide responses (i.e., Defendant should have sought a motion to compel further responses); that, under the appropriate statute governing motions to compel further discovery, Defendant's request comes beyond 45 days, and is thus untimely; and that Plaintiff has, with their Declaration, provided further and satisfactory discovery responses.

These supplemental responses were provided to Defendant electronically on 8/12/26, and were verified by Plaintiff. What's more, while there appear to be detailed responses to some of the interrogatories, those responses stop at Interrogatory 9.2; from that point on, Plaintiff objects, stating that Defendant has exceeded the limit for requests.

Plaintiff also makes reference to the small claims matter, but the argument appears nonsensical.

Finally, in Plaintiff's Declaration, counsel for Plaintiff refers to the significant number of filings and court appearances for the small claims matter.

The court takes judicial notice of the small claims matter, MSC24-0498A, in which it does not appear that Plaintiff has filed anything since 8/29/25, when Plaintiff requested a continuance of the small claims matter because of his ailing spouse.

Plaintiff filed the Complaint in this matter on 5/20/25.

Analysis

Section 2030.290 provides a remedy to a party when the opposition fails to provide timely responses to interrogatories. The responding party waives any objection to the requests. The moving party can request that the court compel a response from the opposition. And the court shall impose monetary sanctions on any party unsuccessfully opposing or making the motion unless it finds that the offending party acted with substantial justification, or that the imposition of sanctions would otherwise be unjust. (*Id.*)

The CCP statutes further require that any responses must be in writing and under oath, and that any objection must set forth the specific ground for the objection “clearly in the response.” (See Sections 2030.210 and 2030.240 of the CCP.)

In the instant matter, Plaintiff’s argument that Defendant invokes the wrong statute assumes that Plaintiff, in fact, provided a timely response to the interrogatories. But that did not happen. A response must be made under oath. The only way to circumvent this requirement is in the case that a response consists entirely of objections, under Section 2030.250 of the CCP.

Plaintiff did neither. The initial responses were not made under oath, and they merely requested further time. But a request for a continuance is no ground for an objection.

Thus, this court finds that Plaintiff never provided timely responses to Defendant’s interrogatories from 9/22/25.

As a consequence, Plaintiff has waived any objections to the requests, such as invoking the limit on requests for limited civil matters.

Sanctions

This court first doesn’t find it to be the case that while Plaintiff has claimed an inability to participate in his own litigation in the instant matter, he has simultaneously done the opposite in the small claims matter. It doesn’t appear that Plaintiff has filed anything in the small claims matter since he first raised the issue of his spouse’s ailing health.

But this court still finds that Plaintiff has misused the discovery process by failing to respond to legitimate discovery requests. It has taken Plaintiff nearly a year to respond to the form interrogatories of Defendant. There were a significant number of attempts by Defendant to discuss the discovery issue and Plaintiff hardly responded, if at all, and seemed to believe that his responsibility to care for his wife meant that he no longer had to follow litigation rules for a lawsuit he initiated. Defendant could do nothing else but file a motion to compel.

This is not fair to the Defendant. It is not fair to begin a lawsuit, prevent the Defendant from properly defending herself by virtue of not participating in the discovery process, then wave off any attempts by Defendant to accommodate the Plaintiff.

If Plaintiff could not participate in the prosecution of the case, he had options. He could have, with some efforts to communicate with Defendant, sought an agreement to dismiss without prejudice but with a tolling of any statute of limitations issues. He made no such attempt. He could also simply have dismissed without prejudice. That, obviously, did not happen either.

This court finds that the 6 hours that Defendant's counsel spent on this issue is reasonable. However, the hourly rate of over \$650, for a limited civil case in the Bay Area, is not. In this court's experience, an hourly rate of \$450 is appropriate for the level of complexity of this matter.

Further, this court does not find that Plaintiff's supplemental responses on 8/12/26 substantially justify the conduct. They are nearly a year late and Plaintiff paid little attention to Defendant's overtures to work out an alternative deadline. What's more, Plaintiff has elected to only respond to the first 35 requests, believing he can invoke the statutory cap at this late hour. He cannot. It's far too late for that; objections have been waived.

However, the court is sympathetic to the fact that Plaintiff has been burdened by the care he must provide for his spouse, and finds the full sanction amount (\$450/hr for 6 hours, totaling \$2,700) to be unjust. The court will, then, sanction the Plaintiff for half that amount, or, **\$1,350**.

Disposition

Defendant's Motion is granted.

Plaintiff is ordered to answer the remaining interrogatories within 30 days of today, 8/25/26.

Plaintiff to pay Defendant sanctions in the amount of \$1,350, by 12/1/26, 5pm.

Defendant to file Order and serve Plaintiff.

8. 9:00 AM CASE NUMBER: L25-09401

CASE NAME: CAPITAL ONE N.A. VS. AMY NILSON

MOTION TO DISMISS

FILED BY:

TENTATIVE RULING:

This was vacated.

9. 9:00 AM CASE NUMBER: L25-12479

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV